

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

MARLENE LEVY, WALDO LEVY JR.,
CHRISTOPHER REID by his
Litigation Guardian Marlene Levy and the
ONTARIO HEALTH INSURANCE PLAN
Plaintiffs

)
)
) Kenneth Arenson, for the Plaintiffs
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)
)

- and -

CITY OF BRAMPTON and
DUFFERIN-PEEL CATHOLIC
SCHOOL BOARD
Defendants

)
)
) Bryan D. Rumble, for the Defendant,
) City of Brampton
) James P. Cavanagh, for the Defendant,
) the Dufferin-Peel Catholic School Board
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) HEARD: May 9 to 13 and 16 to 18, 2005

Spence J.

REASONS FOR JUDGMENT

[1] This is what is commonly referred to as a “slip and fall” case. The plaintiff slipped and fell on the municipal sidewalk extending along the south side of Rutherford Road North in the City of Brampton. The sidewalk is adjacent to the property of the School Board. The plaintiff sues these two defendants for damages for the injuries she claims she suffered as a result of the fall.

The Accident

[2] After her workday on February 5, 2003 the plaintiff took public transportation to the area of her home. It was a winter day and cold. She got off the bus at the bus stop across from the St. Joachim School on Rutherford Road North, on the east side of Wikander Drive. She crossed Wikander to The Beckers store on the west side of Wikander and bought a small bagful of items. She crossed Rutherford Road North to the south side and traversed the

adjacent boulevard to the City sidewalk that runs alongside it, parallel to Rutherford. The plaintiff indicated in certain statements that she had moved to the kindergarten sidewalk to the south of the City sidewalk and had fallen there. I am satisfied she was confused about that evidence, which she subsequently corrected.

[3] The plaintiff started along the sidewalk in an easterly direction, heading for the nearby walkway that runs south from Rutherford on the School property. The walkway provides a familiar short cut to the area south of the School.

[4] The plaintiff noticed some snow on the sidewalk. When she started to walk along it to the School walkway, she started to slip. She tried to walk very slowly and carefully. She didn't see ice on the sidewalk. There was light from the bus stop. She took two or three steps, but she was stepping on ice and she fell. She went down on her right side. Her right ankle was fractured in the fall.

Liability Principles

Liability of the City

[5] The basic rule on the liability of a municipal authority is set out in s.44(1) of the *Municipal Act*, S.O. 2001, c. 25 (the "Act") which makes a municipality liable if it leaves the sidewalk in a state of non-repair. For this purpose "non-repair" means "an unreasonably dangerous condition that prevents a person from using [the sidewalk] with ordinary care in a safe manner, having regard to all the surrounding circumstances". If the municipality fails to satisfy s.44(1) it may be saved from liability under s.44(9) and/or s.44(3) of the Act.

[6] Under s.44(9) of the Act, a municipality is not liable for the injuries suffered by the plaintiff unless the municipality was grossly negligent in regard to the circumstances which led to the accident. A municipality may also be able to rely on s.44(3) which precludes liability if it did not know of the circumstances and could not reasonably have been expected to have known of them, or if it had taken reasonable steps to deal with them.

[7] The City made no inspections of the sidewalk where the accident occurred. The City had in force a by-law requiring frontage owners to maintain the public sidewalks adjacent to their properties. The City relied on the School Board to carry out the necessary maintenance.

Liability of the School Board

[8] Based on the Court of Appeal decision in *Bongiardina v. York (Regional Municipality)* (2000), 49 O.R. (3d) 641 at paragraphs (19) to (21), an adjacent owner has no duty of care in respect of snow and ice accumulating on adjacent public sidewalks unless the adjacent owner assumes control of the sidewalk so as to be deemed to be an occupier of the sidewalk or the adjacent owner fails to ensure that conditions or activities on its property do not flow off its property and cause injury to persons nearby. The latter of these two exceptions is in issue in this case. The first exception is also relevant, as set out in the reasons discussed below.

The Work Experience of the Plaintiff

[9] Prior to the accident the plaintiff was employed by My Travel. On January 22, 2003, the plaintiff accepted a proposal by her employer to transfer from sales agent to advanced seat selection agent. This transfer involved a reduction in pay and a reduction in the grade level accorded to her position by the employer.

[10] Subsequent to the accident, while she was still in a cast and not at work, in April of 2003, she was temporarily laid off. At the end of April 2003 while the temporary lay off was in effect, the plaintiff was told by her doctor that she could return to work.

[11] The temporary lay off continued in effect after April 2003. Subsequently in the fall of 2003, the plaintiff was permanently laid off.

[12] She was told the lay-off was caused by the effect of SARS and the Iraq war.

[13] In November 2003, the plaintiff obtained part-time work at Walmart, where she is currently employed.

The Cause of the Ice on the Public Sidewalk

[14] On February 5, 2003, the head custodian of the School made his usual daily rounds of the School property to assess safety and other conditions. He included the public sidewalk; it was part of his usual daily rounds. He salted the public sidewalk. There is nothing to suggest that he carried out that task in a way that varied from his usual practice.

[15] Mr. Alkoka said that one possible source of ice on the sidewalk was meltwater that had run onto the sidewalk and frozen. Meltwater could have come from snow banks on the School property that contained salt by reason of the snow having been piled up from areas that had been salted. There was a snow pile beside the chain link fence at the south end of the short cut route running south from Rutherford. The property generally sloped toward Rutherford from the school.

[16] Snow was also banked along both sides of the public sidewalk as a result of the snow removal operations carried out on the sidewalk.

[17] Since the area to the south of the sidewalk sloped down to the sidewalk, meltwater could have run off from snow banks on the south side of the sidewalk onto the sidewalk. Mr. Alkoka said the meltwater would have drained from the sidewalk toward and onto the boulevard between the sidewalk and the road, assuming the sidewalk was built with the standard grade, but even so a film of water would have been left on the sidewalk which could have frozen.

[18] Mr. Alkoka identified as another possible source of ice earlier precipitation that had remained on the sidewalk leaving traces of snow that did not melt away. Mr. Alkoka said a third possibility was blowing snow, which could have occurred at the wind velocities that were obtained during the period. No other possible factors were identified.

[19] Mr. Alkoka said the snow bank area along the south side of the sidewalk probably contributed more water than the snow pile at the fence.

[20] At the area where the snow pile was left, the land was fairly flat and drained toward the playing field rather than the road, which makes it doubtful that meltwater from the snow pile was a factor. The evidence as to the terrain in the area around the snow pile was given subsequent to Mr. Alkoka's evidence.

[21] Based on the evidence, it cannot be concluded that run-off from the snow pile at the fence was a factor in the ice on the sidewalk. It seems probable that the ice was caused by one or more of: run-off from the snow banks along the School side of the sidewalk; leftover snow and blowing snow. A more specific conclusion cannot be formed.

Location of the Accident

[22] The City by-law exempted owners on Rutherford Road North from Williams Parkway west to Wikander Way from the maintenance requirement. The City maintains those sidewalks itself. The related map which was developed in connection with and as a basis for the by-law showed that the exempt area extended to and not beyond the first intersection (i.e., more easterly) of Rutherford and Wikander. There is no apparent reason why the by-law should be interpreted to extend the exemption past the first Wikander intersection along the indicated westerly direction to the second Wikander intersection instead.

[23] There were no submissions as to how the interpretation of the by-law should be affected by the fact that Wikander crosses the south side of Rutherford only at the easterly extension of Wikander and not at its westerly extension. Without other evidence, it would seem that the only way to interpret the by-law in respect of the south side of Rutherford is that the exemption extended up to but not beyond the easterly extension of Wikander.

[24] Even if the by-law were interpreted to extend the area of the City's maintenance of the sidewalks on Rutherford up to the westerly end of Wikander at Rutherford (which is an interpretation that is unacceptable for the above reasons), there is no reason why that extension would reach beyond the east side of the westerly end of Wikander. This is so because the by-law applies only to Rutherford and all Rutherford sidewalks on the west side of Wikander are necessarily located beyond Wikander and are therefore not subject to municipal maintenance even on this interpretation. On the evidence, the plaintiff's accident occurred to the west of the extension southerly of the eastern side of the westerly end of Wikander; i.e., in the area that was subject to adjacent owner maintenance even on this interpretation of the by-law.

[25] The question of the extent of the by-law provision *vis-à-vis* Wikander relates to the issue of whether the School Board could be considered a "volunteer" by reason of the school property being outside or beyond the extent of the by-law requirement imposed on adjacent owners. For the reasons given, the School Board was subject to the requirement and was therefore not a volunteer.

Damages

General Damages

[26] The plaintiff suffered a broken ankle on February 5, 2003. It healed in what was apparently a normal way. The plaintiff has complained of pain from her ankle and leg during her consultations with doctors included in her medical reports. From those reports and her evidence and the evidence of her two sons, there is no adequate reason to doubt the authenticity of her complaints or that the pain results from the injury she suffered in the accident, very possible as soft tissue pain. The plaintiff complains that if she works on her feet for more than 12 hours per week the pain becomes intolerable. Her personal and family activities are limited. The medical reports do not support a view that the pain and the resulting difficulties the plaintiff complains of can reasonably be expected to be permanent or even very long-term. Dr. Ramprasad, in his April 1, 2005 letter, says that the plaintiff is improving and in time should be free of pain and discomfort.

[27] In view of the cases of ankle fracture referred to by counsel and the additional factor of continuing pain which seems likely to resolve over time, the amount to be awarded for the general damages should be \$27,500.00.

O.H.I.P.

[28] It is common ground that if there is liability to the plaintiff, O.H.I.P. has a proper claim for \$1,150.38, plus pre-judgment interest.

Pecuniary and Special Damages

Crutches and Medical Expenses, etc.

[29] These items include some allocation for taxis and loss of the use of the plaintiff's shoe collection. An appropriate amount would be \$2,450.00.

Past Economic Loss

[30] The plaintiff lacked the ability to work from February 5, 2003 to May 3, 2003. For this period the amount should be calculated as: 36.25 hours per week X \$10.00 per hour X 12 weeks = \$4,360.00. It was submitted that Employment Insurance benefits should be deducted, but I am not satisfied that that is so.

[31] For the period from May 3, 2003 the plaintiff has been able to work at least for 12 hours per week which she now does at Walmart for \$106.80 per week. Since she was previously earning \$362.50 per week, the amount should be the difference, calculated as follows: \$255.70 X 105 weeks, to the present.

Future Economic Loss

[32] A computation was submitted for the plaintiff that employed assumptions involving a 15-year period and the amount of \$291.08 per week. Since, on the evidence, it is reasonable

to assume for these purposes that the plaintiff's condition will resolve in a period less than the long term, it would be more reasonable to use a 5-year period and assume 1.5 months lost in each twelve-month period (rather than one month per 12), so the amount should be calculated as if 7.5 months and not 15 was the period. The amount per week should be \$255.70, as determined above, and not \$291.08. This would result in an amount equal to about 43% of the \$18,905.00 amount proposed in the plaintiff's submissions. The proper amount on this basis is \$8,200.00.

Mitigation

[33] No deduction is necessary.

Contributory Negligence

[34] When she found that the sidewalk was slippery and unreliable, the plaintiff did not try to move back to and across the boulevard which she had just successfully traversed. It would have been the ordinarily reasonable thing to do. On the other hand, everything obviously happened very quickly. The plaintiff should be regarded as having been contributorily negligent as to 20% of her damages.

Family Law Act Claims

[35] It appears that \$6,000.00 for each of the two boys would be a reasonable amount having regard to the household and family responsibilities they have been sharing and will likely share for a period to come and the limitations on the care, guidance and companionship that the plaintiff can provide to them.

Analysis of Liability

The Duty of Care of the City

[36] Under s.44(9) of the *Municipal Act*, the City cannot be liable if it was not grossly negligent.

[37] The City had in place a by-law which required frontage owners to remove snow and ice from their adjacent City sidewalks each morning before 11:00 a.m.

[38] The City did not conduct any investigations on the compliance with this by-law requirement except in response to complaints. The City never received a complaint about the School Board until it received notice in respect of the present case after the accident.

[39] The position of the City is that, having enacted the by-law, it may rely on the care taken by the adjacent owner to satisfy its duty of care. The result is that the City can be held to have been grossly negligent only if the adjacent owner was grossly negligent. The plaintiff rejects this position.

[40] The issue of gross negligence only arises if it is determined that the sidewalk was in a state of non-repair. Here, on the evidence of the plaintiff, the sidewalk was slippery and icy for a distance of at least three or four steps. She slipped and was unable to avoid falling. The

sidewalk was not safe for use in that area and must accordingly be regarded as having been in a state of non-repair in that area.

[41] As to the test for gross negligence, perhaps the best general description of the test is that set out in *German v. City of Ottawa* (1917), 34 D.L.R. 632 (Ont. S.C.); affirmed 39 D.L.R. 669 (S.C.C.) at p.636:

What is ordinarily considered a neglect of duty is negligence;
and what is ordinarily considered a great neglect of duty is
gross negligence.

[42] To apply such a general test obviously requires that the nature of the subject-matter and the related circumstances must be taken into account.

[43] In *Brown v. British Columbia (Minister of Highways)*, [1994] 1 S.C.R. 420 at p. 439, Cory J. said:

Ice is a natural hazard of Canadian winters. It can form quickly and unexpectedly. Although it is an expected hazard it is one that can never be completely prevented. Any attempt to do so would be prohibitively expensive.

[44] In *Gould v. County of Perth* (1983), 42 O.R. (2d) 548 (H.C.); affirmed (1984), 48 O.R. (2d) 120, Southey J. considered a case involving an icy roadway that arose under a different provision of the *Municipal Act* and one that did not limit the liability of the municipal authority to gross negligence. At p. 552, Southey J. observed that there was no express statutory requirement for the sanding and salting of roads in winter but he said that a duty to salt and sand may arise in certain circumstances as part of the duty to keep a highway in repair. He considered cases which had reiterated that there was no general duty to sand and salt and he said as follows at pp. 556-7:

... All that was meant by saying there is no general duty to sand or salt highways, in my judgment, was that the failure to salt or sand will not in itself be a sufficient ground for imposing liability on the responsible authority. Liability will only result where the situation gives rise to an unreasonable risk of harm to users of the highway, and the authority has failed to take reasonable steps to eliminate or reduce the danger within a reasonable time after it became aware, or ought to have become aware, of its existence.

In *Huycke v. The Town of Cobourg*, [1937] O.R. 682 (C.A.) the Court of Appeal said as follows at p. 5:

...Everyone using a slippery sidewalk takes on a certain amount of risk, and it is unreasonable to hold that every time a person slips and is injured liability must attach to a municipality. If a municipality follows – and I find the defendant did in this case – the usual custom or system in

dealing with the ice conditions upon their sidewalks by sanding, and in doing so, a small space happens to have been missed, or if the sand did not stick or adhere to the sidewalk, or if the sand or part of it had been blown away or thinned out or disturbed by pedestrians, I am of [the] opinion that gross negligence would not follow if a pedestrian happened to slip and was injured. All that the plaintiff and her witnesses were positive about is that there was no sand on the spot where the plaintiff fell.

The evidence in this case, as stated, establishes that the municipality was aware of the general slippery condition of the sidewalks, and was in fact sanding them, and the strongest evidence in support of that fact is, that the plaintiff herself admits that she saw the employees of the municipality sanding the sidewalk on the opposite side of the street the day before she fell. If they were sanding the sidewalk on the south side of King Street on February 6, 1936, it is only reasonable to infer that they would not neglect to sand the north side and opposite this hotel, and especially were aware of the ridge there formed and that it was a dangerous spot.

In this case I find that there was no lack of effort by the municipality to remedy the condition, and, therefore, there was no liability: *Cokers v. Belleville* (1924), 56 O.L.R. 451. It would be an intolerable situation and a financial burden that no municipality could stand if a municipality is to be found guilty of gross negligence because, in the course of scattering sand upon all the slippery sidewalks within its boundaries, a small spot should happened to have been missed and upon that spot someone fell and was injured. To so hold would be virtually to make a municipality an insurer of pedestrians against any possibility of injury, and that is not the law: *Bleakley v. Corporation of Prescott* (1886), 12 O.A.R. 637. Municipalities are not insurers of the safety of pedestrians using their sidewalks: *Boyle v. Corporation of Dundas* (1875), 25 U.C.C.P. 420.

In *Humenick v. The City of Toronto*, [1949] O.R. 362; 1949 Ont. Rep. Lexis 67, Chevrier J. dealt with a case in which the facts were described as follows in the headnotes:

The plaintiff fell at a place where ice and snow had accumulated on a sidewalk. It was found: that there had been a lawyer of snow two or three inches thick, which had been allowed to remain for two days and which, as the result of climatic changes, had softened and then frozen, and had become even more slippery on the day of the accident by reason of the formation of water on the top; that the sidewalk

had been in a dangerous condition for two days, and there was no evidence that sand, ashes, salt or any other substance had been spread; that the condition should have been known to the defendant municipality, through one of its employees, and that the defendant had had ample time, during the two days before the plaintiff's accident, to have the snow and ice removed or adequately covered, but had done nothing.

Chevrier J. said as follows at paragraphs 370 and 371:

As to the facts. In *Holland v. The City of Toronto* [59 O.L.R. at 631], Anglin C.J.C. at P. 634 (O.L.R.) says: "The circumstances giving rise to the duty to remove a dangerous condition, including the notice actual or imputable, of its existence, and the extent of the risk which it creates – the character and the duration of the neglect to fulfill that duty, including the comparative ease or difficulty of discharging it...seem to be important, if not vital, factors in determining whether the fault (if any) attributable to the municipal corporation is so much more than merely ordinary neglect that it should be held to be very great, or gross, negligence.

And at p. 637, Anglin C.J.C. says: "There was, in our opinion, on the part of Blackburn, the city sectionman, such 'very great negligence' that to hold it to be less than 'gross' would be to encourage a reckless indifference on the part of municipal authorities to the safety of persons lawfully using the streets and would, in effect, be to declare that municipal corporations in Ontario are immune from liability for personal injury caused by accidents due to snow and ice on sidewalks. We agree with Mr. Justice Ridell – 'on any definition of gross negligence' we are unable to see that Blackburn's conduct 'does not come within the words'".

[45] Considering the factors mentioned in *Humenick*, it is relevant to note the following circumstances in the present case.

[46] There is no evidence that the School Board knew of the icy condition that existed on the City sidewalk at 7:00 p.m. on February 5, 2003.

[47] From the evidence, it is not possible to make a reasonable inference as to when the icy conditions developed and how long they had existed prior to 7:00 p.m. The head custodian had salted the sidewalk at 7:00 a.m. in the usual way after making his usual morning round. There had been no complaints that day of slippery conditions on the sidewalk. There had been no change in the weather conditions during the day of a kind that would be likely to cause ice to form, i.e., precipitation of rain or snow, or a change in temperature that would give rise to a thaw followed by a freeze.

[48] The plaintiff complains that the custodial staff failed to make a second round of the sidewalk later in the day. They did not make a second round of the School property generally that day either. It was not their practice to make a further round unless conditions arose which reasonably called for it. From the evidence, it cannot be determined at what time in the day the ice could have been discovered from a second round prior to the time of the accident.

[49] Taking these considerations into account, it cannot be concluded that the maintenance carried out by the School Board amounted to a “great neglect of duty”.

[50] It should be noted that the practice of the School Board of making daily morning rounds followed by snow clearing and salting at 7:00 a.m. was in keeping with the by-law requirement applicable to adjacent owners and it satisfied that requirement. Mr. Brophy acknowledged that the use of salt rather than sand amounted to a higher level of service than the City employed for the sidewalks which it maintained.

[51] The plaintiff disputes that the City can avoid liability for gross negligence by requiring adjacent owners to remove snow and ice and relying upon conduct on their part that is not grossly negligent. It is not apparent what different principle could be supported instead. If the sidewalks are maintained in a way that does not constitute gross negligence the standard of care mandated by the *Municipal Act* is satisfied. There is no reason why the City should be liable where the maintenance is performed by the adjacent owner rather than the City itself.

[52] So the City is not liable for a breach of its duty of care.

The Duty of Care of the School Board

[53] The principle or rule enunciated in the *Bongiardina* decision, as set out above, provides a helpful starting point. It addresses the duty of care of adjacent owners in respect of ice and snow accumulating on the adjacent public sidewalk. The *Bongiardina* decision says that apart from the two exceptions it identifies, the adjacent owner has no duty of care in respect of such accumulations. This is an important statement and, on due consideration, provides the key to the resolution in this case of the issue about the duty of care of the School Board.

[54] The obvious reason why the adjacent owner has no such duty of care is that the public sidewalk does not belong to the adjacent owner, but rather to the City. This situation does not change, and this reason does not cease to apply, where, as in this case, the City imposes an obligation on the adjacent owner to carry out snow and ice removal each day prior to 11:00 a.m. The City is still the owner. The adjacent owner is a third party. All that has changed is that the adjacent owner is charged by the by-law with a kind of compulsory agency, from and on behalf of the City, to carry out the specific winter maintenance task mandated by the by-law. So it stands to reason that the adjacent owner would not, in such circumstances, have any general duty of care in respect of the sidewalk any more than it would if it were not charged with such an agency responsibility.

[55] Now, it may well be the law that, with respect to the way in which the adjacent owner carries out the activity mandated by the by-law, the adjacent owner has a duty of care of the same kind that would apply to any user of a public sidewalk in ordinary circumstances, which can be described for these purposes as the duty to use reasonable care to avoid causing reasonably foreseeable harm.

[56] For example, if the adjacent owner used a machine to clear the ice and snow on a sidewalk and operated the machine in a negligent manner with the result that the machine caused harm to a passerby on the sidewalk, it is understandable that the ordinary law of negligence would apply in such circumstances. But nothing in this analysis would support the idea that the adjacent owner has any duty of care in respect of the public sidewalk beyond the manner in which it carries out the mandated activity. To say that there is some larger duty would be to treat the adjacent owner as having some relationship, such as occupant, to the public sidewalk which the by-law requirement by itself does not create. The first exception in the *Bongiardina* formulation of the rule reflects the fact that, in specific circumstances, an adjacent owner could act in such a manner as to be deemed an occupant. But mere compliance with the by-law provides no basis for saying that the adjacent owner is acting as an occupant.

[57] For these reasons, and leaving to one side for the moment the issue dealt with below concerning a hazardous use on the School property, the School Board had no duty of care in respect of the public sidewalk other than as set forth above.

[58] Based on the evidence and submissions, there is an issue whether the School Board met the standard of care that would properly have applied with respect to the manner in which it carried out the morning snow and ice removal. To remove snow, the School Board used a snow blower that deposited snow on the two sides bordering the sidewalk, being the southern border of the land owned by the School Board and the northern one, the boulevard, owned by the City.

[59] On the basis of the evidence of Mr. Alkoka, as noted above, it is possible that, because of the slope of the School Board property on the southern side of the sidewalk, some of the snow accumulated on the southern border of the sidewalk could have melted, even in the sub-zero air temperatures, because of the presence in that snow of salt originally deposited on the sidewalk in the course of earlier snow removal operations and then subsequently piled, in later snow removal operations, onto those southern borders.

[60] Mr. Alkoka said that this occurrence was possible. Whether it was probable would, he said, depend on a number of factors. These included, as a principal consideration, the actual concentration of salt in the snow, as to which there is no evidence available. He expressed no opinion on whether such an occurrence was probably a material factor in the formation of the ice that the plaintiff encountered at 7:00 p.m. on that February evening.

[61] In view of the inconclusive character of that evidence, it could not be concluded that the School Board, in depositing sidewalk snow onto the southern border beside the sidewalk, had failed to act with reasonable care.

[62] Submissions were made as to whether the applicable standard of care required of the School Board, in respect of the way it removed the ice and snow on the day of the accident, was only to ensure that it did not make the condition of the public sidewalk more dangerous than it would have been if no removal effort had been carried out on that day. As noted above, the *Bongiardina* decision would rule out any general duty of care in respect of the condition of the sidewalk. In view of the weather conditions the day before the accident, the sidewalk would not likely have been safer on the day of the accident if no removal effort had been undertaken that day. Accordingly, there is no factual basis to support a claim that the snow removal that the Board carried out worsened the condition of the sidewalk. So it is not necessary to address whether there was a responsibility not to worsen.

[63] For the above reasons, and still leaving to one side the hazardous use issue dealt with below, there was no breach by the School Board of its duty of care in respect of the way in which it carried out the removal of snow and ice on the City sidewalk on the day of the accident.

The Hazardous Use Issue

[64] The plaintiff submits that, by clearing snow from the public sidewalk in such a way that the School Board deposited onto its own property snow that could have had salt content, as stated in the evidence of Mr. Alkoka, the School Board allowed, in the words of the *Bongiardina* decision, “conditions or activities on its property” to develop and to “flow off its property and cause injury to persons nearby”. On this basis, the plaintiff submits that the School Board is liable for allowing a harmful flow of meltwater from its own property onto the sidewalk that must have frozen to form the icy area encountered by the plaintiff.

[65] The first matter to notice here is that in the present case the snow removal activity that is said to have led to the condition was carried on by the School Board not as an independent activity upon its own property undertaken at its own choice but as a conscripted agent of the City upon City property acting under orders from the City to remove snow and ice. If the School Board had failed to remove snow and ice in the mornings it could have been charged and, if convicted, fined and it could also have been subject to a claim by the City for the cost of carrying out the required removal. The way in which the School Board carried out the snow and ice removal was, as determined above, not negligent.

[66] The activity that was carried out by the School Board was the removal of snow and ice from the public sidewalk. This activity was not carried out on the property of the School Board. The activity had the result that snow was deposited from the sidewalk onto the School Board property in the course of the removal, but that result is best regarded as merely reasonably incidental to the snow removal activity carried out on the City property.

[67] There is a judicial policy consideration that should be taken into account here. Counsel referred to some U.S. cases and text comments that consider the kind of situation involved in this case. The comment is made in certain of these authorities that the result of the law, as understood in those authorities, is that if an adjacent owner simply fails to abide by the municipal by-law, the owner cannot be liable to a person in the circumstances of the plaintiff, but if the owner undertakes to comply with the by-law and to clear the snow and ice

the owner assumes a kind of general liability. On fundamental principles it appears unfair that a person could be required by the state to carry out a particular activity for the state on pain of fines and cost recovery for non-performance, and if that person carries out that conscripted activity in a non-negligent way, that person could be held liable to another person.

[68] A further consideration is this. The most that Mr. Alkoka could say is that it is possible that the snow accumulations could have allowed meltwater to flow onto the sidewalk. This evidence would not support a finding that the School Board should reasonably have considered that adjacent snow accumulations likely contained a potential for dangerous flow-off. In view of the nature of the risk, and in particular its dependence upon the concentration of salt in the snow, as to which nothing would ordinarily be known, the risk cannot reasonably be regarded as having been other than remote or possibly even just conjectural. It would be unreasonable to construe the extent of the exception in *Bongiardina* as imposing liability on the conscripted agent of the municipality for non-negligent activities which have an attendant risk that is only remote or conjectural.

[69] Accordingly, the School Board is not in breach of its duty of care to the plaintiff and is therefore not liable to the plaintiff.

Conclusion

[70] For the reasons given above, the claim of the plaintiff is dismissed. Counsel may make written submissions on costs to me if that is necessary.

Spence J.

Released: June 15, 2005

**COURT FILE NO.: 03-CV-248174SR
DATE: 20050615**

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

**MARLENE LEVY, WALDO LEVY JR.,
CHRISTOPHER REID by his Litigation Guardian
MARLENE LEVY and the ONTARIO HEALTH
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**CITY OF BRAMPTON and
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REASONS FOR JUDGMENT

Spence J.

Released: **June 15, 2005**